

1.

CASE #	CASE NAME	HEARING NAME
CVPS2408023	GOMEZ VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	MOTION OF DEFENDANT FORD MOTOR TO SEAL CONFIDENTIAL AND PROPRIETARY EXHIBITS ATTACHED TO PLAINTIFFS' OPPOSITION TO FORD'S MOTION FOR SUMMARY ADJUDICATION BY FORD MOTOR COMPANY

Tentative Ruling: “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal Rules of Court, Rule 2.551(a).) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal Rules of Court, Rule 2.551(b)(1).) California Rules of Court, Rule 2.551(b)(4) also provides that the party requesting that a record be filed under seal must lodge it with the court when the motion or application is made and, pending the determination of the motion or application, the lodged record will be conditionally under seal.

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal Rules of Court, Rule 2.550(d).)

Defendant moves for an order to seal “Exhibits A and D identified in the Declaration of Nitin Sapra in support of Plaintiffs’ Opposition to Defendants’ Motion for Summary Adjudication, to the extent those materials were conditionally lodged under seal, and sealing or redacting two limited references to Ford’s confidential financial information in Plaintiffs’ Opposition and Separate Statement.” (Notice of Motion, p. 2, lines 6-9.) The motion is made on the grounds that the documents sought to be sealed refer to Defendant’s confidential business information or trade secrets. Defendant identifies the following overriding interest that supports sealing and overcomes the public right of access: the right to protect private commercial or financial information. (See, *Food Marketing Institute v. Argus Leader Media*, d/b/a *Argus Media* (2019) 588 U.S. 427, 434, 440; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1217-18.)

The Court finds that Defendant made a competent showing through the declarations of Amanda Pannell, Ford’s California Rav Escalation Manager, and Erich Kemnitz, a Ford Engineer in the Design Analysis Engineering Department, to support a finding that the overriding interest identified by Defendant overcomes the public right of access to the identified documents and that the overriding interest supports sealing the documents. Defendant has adequately shown that there is a probability that the parties’ interests will be prejudiced if the document is made public. The proposed sealing order is also narrowly tailored.

Motion to Seal Confidential and Proprietary Exhibits and References to Confidential Financial Information GRANTED.

Exhibits A and D identified in the Declaration of Nitin Sapara in support of Plaintiff's Opposition to Defendants' Motion for Summary Adjudication are sealed confidential.

The two references to Defendant Ford's financial information in Plaintiffs' Opposition and Separate Statement to the Motion for Summary Adjudication shall be sealed confidential.

Trial Setting Conference confirmed for 7.27.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508257	DUQUETTE VS GUIDEONE INSURANCE CO.	DEMURRER ON 3RD AMENDED COMPLAINT OF DAVID DUQUETTE BY GUIDEONE INSURANCE CO.

Tentative Ruling:

No opposition filed.

Demurrer as to the 3rd Amended Complaint is SUSTAINED, without leave to amend.

As noted in the court's order on 5.06.26, no further attempts at amendment would be provided. Here, Plaintiff's Third Amended Complaint fails to state facts sufficient to support a cause of action, and additionally, Plaintiff is also still attempting to plead on behalf of his wife after having already been denied the guardian ad litem request for failure to obtain an attorney.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602125	LEE VS FCI LENDER SERVICES, INC	MOTION TO BE RELIEVED AS COUNSEL FOR

Tentative Ruling:

Motion to be Relieved as Counsel: GRANTED.

Attorney Goldstein is relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

OSC re status of representation for Plaintiff Robert Lee is scheduled for 8.07.26.
The Demurrer and Motion to Strike are continued to 8.14.26.